ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	134th Commission Meeting
DATE:	05 & 06 July 2023
TIME:	02:00 PM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISIONS
1	**Regular HR update – HRS** *The Assistant HRO updated on the decisions of the 104th and 105th HRC meetings as follows:* • *Conducted training on 'Finance for non-finance' and Anti-Money Laundering/Combating the Financing of Terrorism while training on Liabilities of Legal Persons couldn't be conducted as no virtual link was received;* • *Request of Mr. Rinchen Namgay to withdraw the Extra-Ordinary Leave extension;* • *Extension of the secondment period for Mr. Kencho Namgay, Dy. Chief Finance Officer;* • *Expression of Intent to apply for the Long-term Training by the Head, Legal Division;* • *Decision to issue letter of recommendation to Mr. Kezang Dorji for his study in line with the conditions of the AWe Policy. In addition, the individual has committed to return back to the agency after his study;* • *Decision to issue 'To Whom it May Concern' letter to Mr. Kezang Tshering;* • *Update on the selection result of the vacant post of P1 Management;* • *Appointment of Mr. Tashi Wangchuk, Sr. Admin. Officer as the Offtg. Head of the Secretariat Services and Kinley Yangzom, Asst. Integrity Promotion Officer as the Offtg. Head of the ADMD; and comments on BCSR.*	**The Commission noted the update. Some of the specific directives of the commission are:** • **Regarding 'To Whom it May Concern' letter, unless the individual produce proof that there is no associated obligation of the scholarship, the issuance of the same to be kept in abeyance.** • **Include comments related to promotion of SSC to PMC while compiling comments for the BCSR;** • **Look for the replacement of Mr. Puran Kumar Dural, Chief IPO as his contract period is almost due; and** • **Considering that the SOP TAT exercise for HR functions is still ongoing, the Commission directed HRS to communicate to the RCSC that the relieving of Sr. HRO will be considered accordingly after the exact requirement of HRO is determined.** ***Commission's Appreciation:*** **In the spate of relentless turnover of the seasoned and experienced professionals, the Commission welcomes and highly commends Mr. Rinchen Namgay for his decision to withdraw approved Extra-Ordinary Leave extension and resuming the office given the current HR challenges faced by the agency.**

2	**Discuss on payment for the support personnel recruited for Phuentsholing Regional Office (RO) – Phuentsholing RO** *The Phuentsholing RO has recruited one support personnel in addition to the one General Support Personnel recruited as approved by the RCSC. The pay for the individual is borne from the operational returns of the Phuentsholing building. While the pay parity cannot be ensured, in view of the substantial difference in the pay of the two support personnel with same job responsibility, the Regional Director proposed for an increase in the pay of the support personnel recruited by the RO.*	**The Commission directed to wait for the Pay Revision Act 2023 to take effect and see the actual pay for the ESP/GSP and accordingly revise the pay. However, given that the ESP/GSP recruited under RCSC have undergone requisite selection process, the pay parity is not possible. To this, directed RD to communicate well on this.** **In addition, the individual to be included for the appreciation session for the ESP/GSP colleagues during the Quarterly Staff Meeting.**
3	**Apprise on business proposal from T-Cell regarding CDR request management – DoI** *The Call Data Report (CDR) is one of the critical sources of information for establishing any cases. Currently, the CDRs are sought from two telecommunication service providers through email. With the objectives to streamline the process of furnishing CDR and to earn certain amount of money through its data, TashiCell shared a preliminary business proposal on developing web portal known as Subscriber Information Access Portal.* *On the other hand, it will incur charges such as system development charge, customer information query cost, charge for B-party requests and annual maintenance.*	**In view that the business model will streamline the current practice of obtaining CDR, the Commission in principle recommended the business proposal. Further to this, following were directed:** • **Explore the possibilities of limiting the information for the Service Provider to the number of requests received for the billing purpose without making information such as CID number and phone number explicit;** • **The budget for the associated charges to be committed/adjusted accordingly from the approved budget for the FY 2023-2024;** • **Seek the advice of the Legal Division on the legality of developing such system. Similarly, DoI to discuss on the same with the Bhutan InfoComm & Media Authority in view of the Information, Communication and Media Act of Bhutan; and** • **Given its advantages, the DoI to discuss with the Bhutan Telecom in developing similar system.**
4	**Present monthly status of the Escrow Account – EMD** *The EMD presented the monthly update on the ACC escrow account.*	**The Commission noted the update. Further, directed the following:** • **Find out on the M/S Gyelse Nadin case with the CFD and do the necessary thing regarding the dollar kept in the vault;** • **Ask acknowledgement letter from the Ministry of Finance on the receipt of the cheque for depositing the amount from the ACC Escrow**

		Account into the Government Revenue Account (GRA); and • **Deposit the amount where its source is categorized as 'unknown' into the GRA.**
5	**Present justifications on non-compliance – ADMD** *The ADMD presented the justifications received from the non-declarants of Asset Declaration for the income year 2022.*	**The decisions against the individuals are as attached in the Annexure I.**
6	**Present system studies on Medicine Licensing and Water Flagship Program – PD** *The PD presented two system studies on Medicines Import Licensing and Monitoring Processes and Management of Infrastructure Development of Drinking Water Supply.*	**The directives of the Commission regarding the system study on Medicines Import Licensing and Monitoring Processes are:** • **Not to mention Registration Committee directly under the recommendation number 1. Further, include the need to automate the protection of question bank in the same recommendation;** • **Include recommendation titled 'Strengthen Ethics and integrity measures' to include all recommendations related to issues on embezzlement, bribery and false TADA claims;** • **To gauge whether there are spurious and out-of-date medicinal products or not, PD team to randomly do the on-site assessment. In addition, do the random checking of the product as to see whether the products being sold are the registered product or not and to see whether the in-charge of the pharmacy is technically authorized or not. In this line, include recommendation related to strengthening monitoring by the Bhutan Food & Drug Authority; and** • **Prepare prevention advisory on the same.** **Regarding the system study on the Management of Infrastructure Development of Drinking Water Supply, the Commission directed the following:** • **Revisit the recommendation 3 to include learning from the failures of the completed projects to mitigate similar risks in the future projects;**

		• **Revise the recommendation 5 to include the need to hold responsible public officials accountable and strengthen performance evaluation;** • **Include the need to have adequate technical experts in specific field to conduct objective field monitoring;** • **Include the need to invest in the emerging technology and foster innovation to remain responsive to evolving needs in the recommendation 7; and** • **PD to ensure that the local people are contacted to assess whether the completed projects are successful or not.**
7	**Present Waste Management Guideline along with other apprisals – SS** *The SS presented the ACC's Waste Management Guideline for endorsement.* *The SS also apprised on the distribution of the MacBook prioritized based on the following criteria:* • *Individual serving in the capacity of management;* • *Seniority; and* • *Work requirement and nature of the job.* *In addition, the SS updated that the elevator in the Head Office, Thimphu has resumed its operation after renewal of Annual Maintenance Cost (AMC). However, currently the upward movement is possible only with the card. To this, it was proposed if*	**In principle, the Commission endorsed the Guideline. Some of the specific directions were as follows:** • **Communicate clearly that the waste bin allotted to individuals is exclusively used for disposing dry waste;** • **Reduce the procurement of wet waste bins to two numbers and waste bins for hazardous waste to one with more capacity;** • **Dedicate last Friday of the month for observing 'Zero Waste Hour' and simultaneously put off all electrical appliances during the same hour; and** • **Be specific on the roles of the individuals and responsible persons in ensuring proper management of wastes.** **The Commission noted the MacBook distribution list based on the proposed criteria.** **In view that giving access to unrestricted movement will undermine security measures, the Commission declined the proposal. However, the SS was directed to explore the possibilities of linking the CID card with the elevator or linking with the biometric to facilitate the movement.**

	the card system can be done away to facilitate unrestricted movement.	**However, until such options are explored, the elevator operation to be maintained status quo.**
	Further, given that the pool vehicle currently deployed in Phuentsholing Regional Office is malfunctioning, it was updated that the pool vehicle which has been repaired recently will be sent as a replacement.	**Noted**
8	Present implementation status of Commission's decisions of 124 – 128 Commission meeting – PPD	**Deferred**
9	Others: - **Findings of the Organizational Climate Survey** *The deeper analysis of the OCI indicates comparatively low score in all domains for those employees whose experience ranges from 2 – 5 years, ages ranging from 25 – 35 years and who are in the Professional & Management Category. Generally, this infers that the young officers are the most dissatisfied cohort.*	**To this, directed PPD to look into what sort of targeted interventions can be initiated to make them feel motivated.**
	- **Proposal on Media engagement – PPD**	**In view of the slackened media engagement initiative, the PPD to brainstorm on the proposal to revive the media engagement and present it in the next Commission meeting.**
	- **Deployment of Mr. Rinchen Namgay, Planning Officer on special assignment – Commission**	**Based on the priority of the Commission to enhance the implementation of following initiatives in public and private sectors, the Officer before fully engaging in the daily works of the Policy and Planning Division will be deployed on the special assignment to lead:** **1. Implementation of the Business Integrity Initiative of Bhutan.** **2. Implementation of Model Public Service Code of Conduct; and** **3. Enhancement of the visibility on Integrity Vetting System.** **While the position and staffing of the officer will be protected in the Policy and Planning Division, he will report to the Commission and respective Heads during the course of assignments. To this, the PPD was directed to prepare an office order on the same.**

		Further, Commission directed PPD to schedule separate meeting to update on the implementation status of the Commission's decisions rather than including it as an agenda during the regular Commission meeting.



Commissioner



Commissioner



Chairperson

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Annexure I – Decisions of the Commission against non-declarants

Schedule I

SN	CID	Agency	Follow up Remarks	Commission's Decisions
1	11701XXXX09	Dungyel Rangdroel Drubchen Lotak Thuentshog	• Resigned last year; • Vacation of office not filed; and • In the process of dissolving	Waive and update as not covered person in the system
2	10101XXXX53	Zhabjee Foundation	• Paid 41,875/- • Will be paying the remaining penalty soon.	To pay the remaining amount
3	11106XXXX92	Pema Chhoeling Donga Tenpiling Gomdey	• Permanent disability for more than one and half years • In the process of dissolving	Waive and update in the system as not covered person

Schedule II

1. **Resigned before declaration period**

SN	CID	Agency	Justification	Commission's Decision
1	11914XXXX12	Royal Insurance Corporation Limited	Resigned in Jan 2023	• Put them under the non-declarant category • Write to the Head of Agency by copying it to the ADA. Indicate that the record of the individual will be maintained in the IVS as per the Rules for Integrity Vetting 2022
2	11914XXXX50	Trongsa Dzongkhag	Resigned in Feb 2023, ADA informed to file VoO but individual has not filed yet	
3	11202XXXX65	Royal Society for Protection of Nature (RSPN)	Resigned in Feb 2023	

2. On studies/EOL

SN	CID	Agency	Justification	Commission's Decision
1	10709XXXX98	MoICE	On EoL since January 2023 and the notification sent by officewas in the government email which the individual cannot access. She filed on 1 June when she received ADS link in her email on 31 May from ACC office.	Waive
2	10705XXXX00	Office of the Attorney General	On EoL since December 2022 and delinked from official email (not aware). Moreover, the individual was not even informed by the ADA.	Waive
3	11214XXXX03	Office of the Attorney General	On EoL since 16 December, 2022 and the individual has been delinked from official email and therefore was not aware of filing AD.	Waive
4	11513XXXX18	Office of the Attorney General	Leave from 16 December, 2022 to 28 February 2023 and EoL from 1 March 2023 and delinked from official email. Therefore he was not aware of filing AD.	Waive
5	10715XXXX20	Office of the Attorney General	On EoL since 30 October, 2022, delinked from official email (not aware of filing AD)	Waive
	11001XXXX47	Office of the Attorney General	On EoL from Dec 2022 and delinked from official email (not aware on the need to file). Moreover, he was not even informed by the ADA.	Waive
	11704XXXX93	Office of the Attorney General	On EoL since January 2023 and she has been delinked from official email and therefore she was not aware of filing AD	Waive

3. Created/Not submitted

SN	CID	Agency	Justification	ADMD Verification	Commission's decision
1	10310XXXX20	Jigme Dorji Wangchuck National Referral Hospital (JDWNRH)	- 20 April - 6 June 2023 on the bereavement leave; - Asset Declaration was still in draft stage.	Created on 8/3/2023	Find out whether the individuals are repeated offender or not and accordingly consider waiving or imposing the penalty
2	10101XXXX97	GIC Bhutan Reinsurance Co. Limited	Annual declaration created not submitted. Filed Vacation of Office on top of that created annual declaration.	Created on 2023-04-20	
3	11606XXXX44	Samdrup Jongkhar Dzongkhag	Created but not submitted his declaration before deadline but due to poor network it did not get submitted. He didn't know until the ADA informed him.	Created on 2023-04-11	
4	11503XXXX28	Phuentsholing Thromde	Had filed declaration on time when the individual was with NLCS. However, got transferred to Phuentsholing Thromde and did not file. When the individual tried submitting during the non-declaration phase the submission date reads 00/00/00	Created the first declaration on 2023-03-07 and created the second on 2023-04-05 09:48:17 but was not submitted.	
5	11506XXXX12	Music of Bhutan Research Centre	Submitted on time and also got acknowledged on the sumbission.	Created on 14/3/2023 but Submitted on July 4 2023 (Missing income statement)	

6	11505001850	Tsirang Dzongkhag	Reset password and received on 25th April, 2023 at 12:02 PM. Submitted the asset declaration immediately. However, he did not receive any email for submission.	Created on 25/4/2023	

4. Others

SN	CID	Agency	Justification	Commission's Decision
1	12004XXXX24	Zhemgang Dzongkhag	Got informed on becoming a non-declarant on 2 June. Filed the declaration for year 2022 but surmise that it did not get submitted due to network error. Moreover, no one reminded him.	Impose
2	10705XXXX74	MoHA	Transferred to Bhutan Temple Complex Construction Project, Rajgir, Bihar under Department of Culture and Dzongkha Development since September 2022. Could not file as the individual was occupied with work and also due to poor internet connectivity in the project site.	Check with other officials who are posted in the same location whether they have filed or not. If he is the lone non-declarant, impose the penalty.
3	10505XXXX20	Druk Green Power Corporation Limited	Maternity leave starting December 30, 2022 to June 30, 2023 during the period of the asset declaration, 2023. During the time of her spouse Asset Declaration came across the option to file the asset of the spouse together with his (Is your spouse filing AD separately?) and to confirm he made a call to focal person from the Tala Hydropower Plant (THP), Tala and further to the focal person from Anti-Corruption Commission upon which it was informed that there is no need to declare the asset of spouse separately if you want to declare together and accordingly all the detail	Waive

			of assets of his and mine were filed together which you can see in details in his asset declaration report attached.	
4	10806XXXX19	Druk Green Power Corporation Limited	Declared it in March 2023 and even when the HRO of Tala Hydropower Plant had sent a reminder to declare asset on April 27, 2023 (Email and attachment enclosed), his name was missing from the non-declarant list. Thus, he assumed that his declaration was accepted. Moreover, he lost his unborn child and wife on April 16, 2023, and April 17, 2023, respectively and could not check the status of his application as well (death certificate attached). He was not in the right frame of mind to do anything after that.	Waive
5	10207XXXX39	Zhemgang Dzongkhag	She was not aware that he was a non-declarant until ADA informed on 2 June 2023. No prior warning was issued by the focal person. Dental Camp 24-04-2023 till 16-05-2023	Impose
6	12004XXXX20	Zhemgang Dzongkhag	Not aware that he was a non-declarant until ADA informed him on 2 June 2023. No prior warning was issued by the focal person. He started filing AD since 2022 and he is still getting acquainted with the system.	Impose
7	11106XXXX97	Zhemgang Dzongkhag	He went to India on a medical escort leave from 6 December - 20 December 2022. After that he has been fully engaged in the NC election 2023.	Impose
8	12004XXXX02	Zhemgang Dzongkhag	The role of mess in-charge is in rotation basis and he was not the mess in-charge for the year 2022. Moreover, he went on the election duty in the month of April.	Impose

9	10802XXXX13	Zhemgang Dzongkhag	He was not aware that he was a non-declarant until ADA informed him on 2 June 2023. No prior warning was issued by the focal person. He started filing AD since 2022 and he is still getting acquainted with the system	Impose
10	12003XXXX70	Zhemgang Dzongkhag	He completely forgot to declare as his wife was due for delivery in May month. So he had to accompany his wife for delivery.	Impose
11	11104XXXX19	Centre for Bhutan Studies and GNH Research	He submitted his declaration on 30 April 2023. However, his ADA informed him that he has not submitted his declaration so he submitted his declaration on 20 June 2023.	Impose
12	11505XXXX15	Ministry of Infrastructure and Transport	He filed before deadline but somehow it did not get submitted. Request to consider as late declarant or 90 days penalty instead of imposing non-declaration penalty.	Impose
13	11811XXXX85	Zhemgang Dzongkhag	Filed last year, did not file this year thinking he need not.	Impose
14	11809XXXX54	Sarpang Dzongkhag	He thought he submitted but it was not submitted due to internet issue and busy schedule	Impose